

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF ALBANY

In the Matter of the Application of

ORGANIC BLOOMS, LLC, NIAGARA NUGGET,
LLC, BLACKMARK, LLC, and WINDWARD
MANAGEMENT, LLC

Index No. 904497-24

Petitioners-Plaintiffs,

*For a Judgment Pursuant to Article 78 of the Civil
Practice Law and Rules and a Declaratory Judgment
Pursuant to CPLR 3001,*

-against-

NEW YORK STATE CANNABIS CONTROL
BOARD and NEW YORK STATE OFFICE OF
CANNABIS MANAGEMENT,

Respondents-Defendants.

**MEMORANDUM OF LAW IN SUPPORT OF
RESPONDENTS' ANSWER AND MOTION FOR
SUMMARY JUDGMENT**

LETITIA JAMES
Attorney General
State of New York
Attorney for Respondents-Defendants
The Capitol
Albany, New York 12224

Ryan W. Hickey
Assistant Attorney General, of Counsel
Telephone: (518) 776-2616

TABLE OF CONTENTS

PRELIMINARY STATEMENT 1

PROCEDURAL HISTORY..... 2

STATEMENT OF FACTS 4

STANDARD OF REVIEW 8

ARGUMENT 9

POINT I 9

 PETITIONERS ORGANIC BLOOMS, LLC, BLACKMARK, LLC, AND WINDWARD
 MANAGEMENT LLC’S CLAIMS ARE MOOT 9

POINT II 11

 RESPONDENTS’ INTERPRETATION AND APPLICATION OF MRTA § 76 TO
 CAURD APPLICATIONS WAS NOT ARBITRARY AND CAPRCIOUS OR
 UNLAWFUL.....11

POINT III..... 14

 THE PETITION MUST BE DISMISSED 14

CONCLUSION..... 15

Respondents, the New York State Cannabis Control Board (“Board”), New York State Office of Cannabis Management (“Office”), submit this memorandum of law in support of their answer and motion for summary judgment in this hybrid Article 78 special proceeding and CPLR 3001 declaratory judgment action.¹ For the reasons explained below, as well as in the accompanying Affirmation of Patrick McKeage and attached exhibits, the Petition should be dismissed in its entirety, and summary judgment should be granted for Respondents.

PRELIMINARY STATEMENT

Petitioners Organic Blooms, LLC, Niagara Nugget, LLC, Blackmark, LLC, and Windward Management, LLC (collectively “Petitioners”) bring this hybrid Article 78 special proceeding and CPLR 3001 declaratory judgment action alleging that Respondents violated Section 76 of the Marijuana Regulation and Taxation Act (“MRTA”)(“Section 76”) by “waiving” dispensary location requirements for Conditional Adult-Use Retail Dispensary (“CAURD”) license applicants. *See generally* Dkt. No. 101. Petitioners allege that Respondents acted arbitrarily and capriciously, and in excess of their authority, by allowing CAURD applicants to apply for dispensary licenses without first securing a location and notifying their municipality as required under Section 76. *Id.* Petitioners also seek a declaration that Respondents violated Section 76, and that licenses issued to CAURD applicants are invalid. *Id.*, “Wherefore” clause.

The Petition should be dismissed for several reasons. *First*, Petitioners Organic Blooms, Blackmark, and Windward Management’s claims are moot. Since the commencement of this proceeding over two years ago, Organic Blooms has been granted a license. Further, Respondents reviewed and deemed voided the applications of Petitioners Blackmark LLC and Windward Management LLC for reasons other than compliance with Section 76.

¹ For ease of reference, Respondents refer to the Petition-Complaint in this hybrid proceeding as “the Petition.”

Second, Respondents engaged in a lawful and rational reading of MRTA 76 and should not be compelled by the Court to re-order applications within the December Queue, even if there is an alternative, rational reading of the statute. A court reviewing an agency's interpretation of its own statutes defers to the agency's interpretation absent irrationality or unreasonableness. Section 76's requirements, including securing a retail location and notifying the municipality, apply to both CAURD and non-CAURD applicants. Although CAURD applicants can obtain provisional licenses before securing a location or notifying the municipality (just like non-CAURD applicants), they may not apply for final licensure by the Board without first meeting these requirements.

Accordingly, the Petition should be dismissed and Petitioners' request for a declaratory judgment should be denied.

PROCEDURAL HISTORY

On May 9, 2024, Petitioners commenced the instant hybrid Article 78 proceeding and CPLR 3001 declaratory judgment action. Dkt. No. 1. The Petition seeks a judgment declaring that Respondents' "failure to enforce MRTA §76 to all applicants equally" is "arbitrary and capricious as it was issued without rational basis in fact or law, in excess of Respondents' jurisdiction and outside the scope of its regulatory authority." *Id.* Petitioners also seek an order declaring that "any and all licenses improperly granted" by Respondents pursuant to their alleged failure to enforce MRTA §76 are invalid and annulled. *Id.*

Together with the Petition, Petitioners sought a preliminary injunction to prevent "Respondents from awarding any adult-use cannabis retail licenses without a physical location and municipal notification through the conclusion of this proceeding." *Id.* Petitioners opposed Respondents' request for a preliminary injunction, and moved to dismiss the proceeding. Dkt.

Nos. 18-36.

On December 12, 2024, the Court issued an order granting Petitioners' motion for a preliminary injunction as follows

[P]etitioners motion for a preliminary injunction is granted to the extent that pending the outcome of this proceeding, respondents are enjoined from processing CUARD applications in which the applicant did not submit proof of a municipally noticed secured location on or before November 17, 2023 and are enjoined from processing any other provisional [adult use] applications.

Dkt. No. 50. The Court denied Respondents' motion to dismiss. *Id.* In response to the preliminary injunction, a group of non-party CAURD applicants moved to intervene in the proceeding, seeking to protect their interests in light of the restrictions imposed on the processing of applications. Dkt. Nos. 52-68. On December 20, 2024, Respondents filed a letter requesting clarification on the scope of the preliminary injunction. Dkt. No. 69. On December 24, 2024, the Court issued a Decision and Order clarifying the scope of the preliminary injunction. Dkt. No. 84. Specifically, the Court explained that the preliminary injunction does not enjoin Respondents from:

(1) processing all non-provisional applications in the November and December queues; (2) processing CUARD applications and any other provisional license applications that sent municipal notification forms to OCM *at any time* prior to 11/17/2023, even if the municipal notification forms were submitted fewer than thirty (30) days prior to the filing of the application and even if the applicant subsequently lost control over their original location or their original location was not viable due to proximity limitations and the applicant subsequently submitted a new location to respondents for review; (3) Processing public convenience and advantage requests for applicants from categories (1) and (2) above; and (4) Processing any amendment requests, location approval requests, or other processing of already licensed entities (regardless of CAURD, provisional, or non-provisional status) whose licenses were approved prior to this Court's issuance of the preliminary injunction.

Dkt. No. 84 at 3.

On January 15, 2025, after conferring with the parties and proposed intervenors, the Court issued another order clarifying and limiting the scope of the preliminary injunction. Dkt. No. 97.

Under this most recent iteration of the preliminary injunction the court clarified that:

(1) any applicant who has received written notice from OCM on or before December 12, 2024 confirming that the applicant was granted a CAURD and/or provisional license is considered a “licensee” for the purposes of the December 12, 2024 Decision and Order; (2) the Board and/or OCM may take any action regarding the final licensure and/or “post-selection” process of any such licensee who was granted a CAURD and/or provisional license on or before December 12, 2024; (3) the preliminary injunction applies only to CAURD applicants and provisional adult-use retail dispensary applicants who have not, as of December 12, 2024, received a license approval vote from the CCB and/or written notification of license approval from the OCM; and (4) the preliminary injunction does not prohibit Respondents from processing non-provisional applications in the November and December queues, including any applicant who thereafter lost control of that location or whose original location was not viable due to proximity limitations. *Id.*

The preliminary injunction, as clarified and limited by the January 15, 2025 Order, remains in place as of the filing of this memorandum.

STATEMENT OF FACTS

A. *The CAURD Program*

From August 25, 2022, through September 26, 2022, the Office accepted applications for Conditional Adult-Use Retail Dispensary (“CAURD”) licenses, the first set of adult-use retail cannabis dispensary licenses issued in New York State. Affirmation of Patrick McKeage (“McKeage Aff.”) at ¶ 4. CAURD was a temporary program which allowed businesses meeting certain criteria to apply for adult use retail dispensary licenses. *Id.* at ¶ 5. To be eligible for a CAURD license, applicants had to be at least thirty percent owned by an individual who has “sole control” of the business and be “justice involved,” among other requirements. *Id.* at ¶ 6. These criteria were designed to advance the restorative justice goals of the MRTA by affording individuals who are disproportionately impacted by the prior criminalization of marijuana the opportunity to enter the retail dispensary market. *Id.* at ¶ 7.

To obtain a CAURD license, applicants completed a two-part application process. *Id.* at ¶ 8. First, CAURD applicants had to obtain a provisional license. To do so, a CAURD applicant submitted an online application which was reviewed by the Office’s licensing team. *Id.* at ¶¶ 8-11. If the application met the required criteria and scored high enough to be considered for a provisional approval, the Board granted the applicant a “provisional license.” *Id.* at ¶ 11.

However, receiving a provisional license meant only that the applicant scored high enough on the first part of its application to have the opportunity to apply for a full license during the second part of the process. *Id.* at ¶ 12. Provisionally licensed applicants do not yet have a certificate of licensure and therefore cannot sell cannabis products or otherwise engage in any activities associated with operating a dispensary. *Id.* ¶¶ 12-14. To operate as a dispensary, the Board or Office must grant the provisionally approved applicant a full license to operate. *Id.*

To obtain a final license certificate, a CAURD applicant must complete a Post-Selection Application. *Id.* at ¶ 15. Among other things, the Post-Selection Application requires the applicant to confirm that it met the requirements of Section 76 by: (1) securing a retail dispensary location; and (2) notifying the respective community board or municipality. *Id.* at ¶ 15.² A provisionally approved CAURD applicant can secure a location in different ways. *Id.* at ¶ 16. The applicant can use one of the potential dispensary sites provided by the New York Social Equity Investment Fund (“the Fund”). *Id.* The Fund is a subsidiary of the Dormitory Authority of New York that secures and renovates locations for potential CAURD dispensaries. *Id.* at ¶ 16, n.1. Or the applicant may propose their own location outside of Fund support. *Id.* at ¶ 15,

² The Post-Selection Application also requires the applicant to submit information regarding its owners (among other persons involved in the license), site plans, sales tax certificates, insurance, and staff and labor agreements, among other information. Mckeage Aff. at ¶ 23.

Once a provisionally approved applicant secures a location, they must provide notice to the local municipality or community board where the retail dispensary is located. *Id.* at ¶ 19. Upon receipt of such notice, the municipality or community board has thirty days to provide its opinion on whether the provisionally approved applicant should be granted a full license. *Id.* at ¶ 20. The Office then reviews any such opinion, together with the applicant's completed Post-Selection Application materials, and decides whether to grant final approval for a retail dispensary license. *Id.* at ¶¶ 21-28.

B. The Adult-Use Application Process

On October 4, 2023, Respondents opened the application window for all adult-use license types, including retail, microbusiness, cultivator, and distributor ("the adult-use application process"). *Id.* at ¶ 29. The applications were divided into two pools based on the status of the applicant and the date the application was submitted. *Id.* First, the application window for applicants who wanted to seek a retail license for which they already had proof of control over a proposed premises from which they intend to operate closed on November 17, 2023 (the "November Applications"). *Id.* Second, the application window for applicants who applied after November 17, 2023, or for a provisional license without proof of control over a premises, closed on December 18, 2023 (the "December Applications"). *Id.*

On December 7, 2023, the Office used a computer program to randomly sequence the November Applications to create the order in which OCM reviews the applications (the "queue"). *Id.* at ¶ 30. CAURD applications were not part of the adult-use application windows, and were not reviewed in the adult-use application queue since they had already been through the prior application/ licensing window. *Id.* at ¶ 31.

All adult-use applicants must submit proof of control over a proposed premises to complete the application and be considered for a final license, except those applicants for retail dispensary and microbusiness licenses. *Id.* at ¶ 32. Like the CAURD program, an adult-use applicant seeking a retail dispensary license may apply for a provisional license if the applicant does not have control over the premise at the time of the application. *Id.* at ¶¶ 32-35. Also, like the CAURD program, an adult-use applicant must submit proof of control over the premises to obtain a final license. *Id.*

A provisional license issued as part of the adult-use application process does not authorize operating activities, but it provides assurances to stakeholders, like investors, landlords, and lenders, that the application satisfies certain conditions necessary and relevant to the license type sought, subject to completion of outstanding items required to obtain a final license. *Id.* at ¶ 34. In this way, the provisional license may help applicants secure a premises or funding for their cannabis operation before a final license is issued. *Id.*

The adult-use application process, just like the CAURD application process described above, is a two-part application process. However, adult-use applicants had the opportunity to combine the two parts by submitting one application with proof of control over their proposed license premises if they submitted their application by November 17, 2023 (but they were not required to do so). *Id.* at ¶ 35.

C. Petitioners' Applications for Retail Adult-Use Dispensary Licenses

Petitioners applied for dispensary licenses as part of the adult-use application process. *Id.* at ¶¶ 40 – 48. Petitioner Organic Blooms, LLC submitted a November Application for an adult-use retail dispensary. *Id.* at ¶ 40. Petitioner Organic Blooms, LLC received its certificate of licensure for an adult-use retail dispensary effective June 23, 2025. *Id.* at ¶ 41.

Petitioner Blackmark, LLC submitted a November Application for an adult-use retail dispensary, application OCMRETL-2023-001859. *Id.* at ¶ 44. Petitioner Blackmark, LLC also submitted a December Application for an adult-use retail dispensary, application OCMRETL-2023-000312, which is positioned at number 1366 in the December queue. *Id.* at ¶ 45. Respondents reviewed and voided Blackmark LLC’s November Application because of its failure to provide an attestation confirming divestment from out-of-state supply-side cannabis licenses. *Id.* at ¶ 46.

Petitioner Windward Management, LLC submitted a November Application for an adult-use retail dispensary, application OCMRETL-2023-001729. *Id.* at ¶ 47. Respondents reviewed and voided Windward Management LLC’s application because of its failure to provide a signed lease agreement. *Id.* at ¶ 48.

Finally, Petitioner Niagara Nugget, LLC submitted a December Application for an adult-use retail dispensary, application OCMRETL-2023-003939, which is positioned at number 2686 in the December queue. *Id.* at ¶¶ 42-43.

STANDARD OF REVIEW

Article 78 Standard

Under CPLR § 7803(3), the Court evaluates “whether a determination was made in violation of lawful procedure, was affected by an error of law or was arbitrary and capricious or an abuse of discretion.” CPLR § 7803. The test applied in deciding whether an administrative action was arbitrary and capricious is whether the action had a rational basis. *Matter of Peckham v. Calogero*, 12 N.Y.3d 424, 431 (2009). The Court determines whether the action in question was taken “without sound basis in reason and . . . without regard to the facts.” *Matter of Pell v. Bd. of Educ.*, 34 N.Y.2d 222, 230-31 (1974).

Declaratory Judgment Standard

Civil Practice Law and Rules § 3001 permits the Court to “render a declaratory judgment having the effect of a final judgment as to the rights and other legal relations of the parties to a justiciable controversy whether or not further relief is or could be claimed. . . .” *Id.* In a declaratory judgment action presenting no issues of fact, the Court should declare the rights of the parties as a matter of law. *See 200 Genesee St. Corp. v. City of Utica*, 6 N.Y.3d 761, 762 (2006); *Greenport Group, LLC v Town Bd. of the Town of Southold*, 167 A.D.3d 575, 580 (2d Dep’t 2018).

Where the Court determines that a plaintiff is not entitled to the determination sought, the proper relief is entry of a declaratory judgment in favor of the defendant. *See Matter of Gedney Assn., Inc. v. Common Council of the City of White Plains*, 209 A.D.3d 1019, 1022 (2d Dep’t 2022), citing *Lanza*, 11 N.Y.2d at 334. If “the record before the Supreme Court [is] sufficient to resolve all issues of fact such that the rights of the parties can be determined as a matter of law[.]” *11 King Ctr. Corp. v. City of Middletown*, 115 A.D.3d 785, 787 (2d Dep’t 2014), the Court should issue a judgment so declaring. *See id.* *See also Maresca v. Cuomo*, 64 N.Y.2d 242, 249 (1984) (upon finding that the provisions in question were constitutional and denying preliminary injunction, Appellate Division should have issued declaration in favor of defendants).

ARGUMENT**POINT I****PETITIONERS ORGANIC BLOOMS, LLC, BLACKMARK, LLC, AND WINDWARD MANAGEMENT LLC’S CLAIMS ARE MOOT**

Petitioners Organic Blooms LLC, Blackmark, LLC, and Windward Management LLC’s claims are moot and must be dismissed. “As a general principle, courts are precluded from considering questions which, although once live, have become moot by passage of time or change in circumstances.” *Matter of Kern v. Adirondack Park Agency*, 223 A.D.3d 990, 991, (3d Dep’t

2024)(internal quotation marks and citations omitted). This principle applies equally to special proceedings under Article 78 and declaratory judgment actions in which, due to a change in circumstances, the requested declaration would not “result in immediate and practical consequences to the parties.” *See Matter of Hoyt v. Figueroa*, 246 A.D.3d 1172, 1174 (3d Dep’t 2026).

Three of the four Petitioners’ claims are now moot because of changes in the status of their applications since the commencement of this proceeding. First, Petitioner Organic Blooms, LLC received its retail dispensary license nearly a year ago. McKeage Aff. at ¶ 41. As such, there is no live controversy concerning Organic Blooms LLC’s license and a ruling concerning the application of MRTA § 76 to CAURD applicants will have no immediate or practical consequence for Organic Blooms LLC. Petitioner Organic Bloom LLC’s claims must be dismissed as moot.

Second, since the commencement of this proceeding, Respondents reviewed and voided the applications of Petitioners Blackmark LLC³ and Windward Management LLC. OCM denied the applications for reasons wholly unrelated to the application of MRTA § 76, rendering the requests for relief in this case moot. Specifically, Respondents voided Blackmark LLC’s application because of their failure to provide an attestation confirming divestment from out-of-state supply-side cannabis licenses. *Id.* at ¶¶ 44-46. Further Respondents voided Windward Management LLC’s application because of its failure to provide a signed lease agreement. *Id.* at ¶¶ 47-48.

Finally, these circumstances do not qualify as an exception to the mootness doctrine. To

3 Respondents reviewed and voided Petitioner Blackmark LLC’s application in the November queue, rendering any claim in this litigation related to that application moot. Blackmark LLC has a second application in the December queue, but any claims arising out of that application are meritless for the reasons discussed in Point II of this memorandum.

invoke the exception to the mootness doctrine, the nonmovant must show that “the issue to be decided, though moot, (1) is likely to recur, either between the parties or other members of the public, (2) is substantial and novel, and (3) will typically evade review in the courts.” *Hoyt*, 246 A.D.3d at 1174 (internal quotations and citations omitted). These three Petitioners issues are not likely to recur. Organic Blooms now has its license. Blackmark LLC and Windward Management LLC’s applications were reviewed voided for their failure to comply with other, unrelated application requirements. At its core, Petitioners’ objection to Respondents’ interpretation of MRTA § 76 arises out of their belief that this interpretation gave CAURD applicants an unfair advantage in the review process. But, now that each of these three Petitioners applicants have been reviewed and resolved by OCM, the issue of timing or ordering of their review as compared to CAURD applicants is moot and cannot recur.

POINT II

RESPONDENTS’ INTERPRETATION AND APPLICATION OF MRTA § 76 TO CAURD APPLICATIONS WAS NOT ARBITRARY AND CAPRICIOUS OR UNLAWFUL

Petitioners’ sole claim in this proceeding is that Respondents improperly “waived” the requirements of MRTA § 76 for CAURD applicants. The merits of this case turn on whether Respondents’ interpretation and application of MRTA §76 for CAURD applicants was irrational.

MRTA § 76(1) requires that

Not less than thirty days nor more than two hundred seventy days before filing an application for licensure as an adult-use retail dispensary or registered organization adult-use cultivator processor distributor retail dispensary or an on-site consumption licensee, an applicant shall notify the municipality in which the premises is located of such applicant’s intent to file such an application.

See MRTA § 76(1) (emphasis added).

Petitioners’ “waiver” theory derives from their belief that Respondents cannot rationally

interpret MRTA § 76 to allow CAURD applicants to identify their location and provide municipal notification *later in the application process* than non-CAURD applicants. This argument is without merit. “[A]n agency’s interpretation of the statutes it administers must be upheld absent demonstrated irrationality or unreasonableness.” *Seittelman v. Sabol*, 91 N.Y.2d 618, 625 (1998). “[W]hen construction of a statute depends on an understanding of underlying operational practices or entails an evaluation of factual data and inferences to be drawn therefrom, the question of statutory interpretation is generally left to the special expertise of the agency and the determination is entitled to deference when it is not irrational or unreasonable.” *Jennings v. N.Y. State Office of Mental Health*, 90 N.Y.2d 227, 239 (1997)(internal citation and quotations omitted). Moreover, an agency’s “interpretation is not rendered irrational simply because the regulation may be susceptible to a different rational interpretation.” *Matter of Elcor Health Servs. v. Novello*, 295 A.D.2d 772, 774 (3d Dep’t 2002).

While it is true that Cannabis Law § 10 [19] contemplates that the “initial” adult-use cannabis retail dispensary license application period “opened at the same time,” Respondents also have a statutory mandate to promote social equity in the licensing process by prioritizing certain applicants. *See* Cannabis Law § 10 [19]; *see also* Cannabis Law § 64(1)(requiring the Board to develop criteria for social and economic equity applicants). As this Court emphasized at the preliminary injunction stage, “Respondents undoubtedly had the authority, and indeed a statutory mandate, to promulgate regulations and processes that prioritize [social equity] applications. It is also readily apparent that the CAURD program was designed to advance the MRTA’s social equity and justice goals.” Dkt. No. 50 at 9.

Respondents’ application of MRTA § 76(1) to allow CAURD applicants to initiate a *provisional* application process, but defer location and municipal notification requirements until

the point at which qualified CAURD applicants sought *final* licensure was a reasonable and rational effort to abide by their statutory mandate. Faced with this statutory mandate in the nascent New York recreational adult use cannabis industry, Respondents made the rational choice to allow a two-phased approach for CAURD applicants. Allowing for a two-step process opened licensure to applicants of more limited means, since otherwise, securing a location is the single most capital-intensive step in the application process. Without some pathway that permitted those of more modest means to apply for a dispensary license, licensure would be limit to those with ready access to capital or the contacts to secure it quickly, thereby undermining the legislative intent of creating an equitable cannabis industry. *See Cannabis Law § 2.*

Contrary to Petitioners' assertions, Respondents never "waived" or otherwise excused CAURD applicants from meeting these requirements to obtain a final license or a certificate of licensure. *Id.* at ¶ 47. Although CAURD applicants were able to obtain a *provisional* approval or provisional license before securing a retail location, such provisional license merely allowed them to proceed to the next step of the application process, *i.e.* to apply for a final license. *Id.* at ¶¶ 11. Indeed, an application provided to OCM is not "deemed complete for filing" until all required documentation, including those mandated by Cannabis Law § 76, has been submitted to the agency. 9 N.Y.C.R.R. § 120.5. Thus, to the extent the "application period" for CAURD applicants "opened" in advance of the regular adult use applications, it was solely to allow for them to meet provisional requirements, not to obtain final licenses. Provisionally licensed CAURD applicants are not permitted to operate until they successfully complete a Post-Selection Application and receive final approval. *Id.* at ¶¶ 14 – 24. To obtain final approval, provisionally-licensed CAURD applicants must prove that they have satisfied MRTA § 76 by securing a location and notifying the relevant community board or municipality. *Id.*

In sum, Respondents made a rational interpretation of their authority within New York's developing regulatory scheme for cannabis dispensary licensing. Even if there could be *another* rational interpretation of that authority under which Respondents could have exercised their authority differently, it is not the function of judicial review to select between competing rational interpretations. The Petition should be denied in its entirety.

POINT III

THE PETITION MUST BE DISMISSED

For the same reasons that Petitioners cannot make out a cause of action under Article 78, they also are not entitled to a declaratory judgment. Petitioners have no legal right to a declaration that Respondents' actions were arbitrary and capricious or contrary to law. As explained above, where the parties dispute concerns the interpretation and application of an agency's regulations within their area of expertise, judicial review is limited to identifying whether a rational basis exists for the agency's interpretation. *See Seittelman*, 91 N.Y.2d at 625. Because Respondents acted rationally, Petitioners request for a declaratory judgment must be denied and the Court should enter declaratory judgment in Respondents' favor. *See generally 306 Wall St. Owners, LLC v. City of Kingston*, 241 A.D.3d 1692, 1698 (3d Dep't 2025) ("Supreme Court should have rendered a declaration in defendant's favor ...").

CONCLUSION

For all of the reasons detailed above, the Petition should be dismissed in its entirety.

Dated: Albany, New York
June 12, 2026

LETITIA JAMES
Attorney General
State of New York
Attorney for Respondents
The Capitol
Albany, New York 12224

By: s/ Ryan W. Hickey
Ryan W. Hickey
Assistant Attorney General, of Counsel
Telephone: (518) 776-2616
Email: Ryan.Hickey@ag.ny.gov

TO: Counsel of record (*Via NYSCEF*)

STATEMENT PURSUANT TO 22 NYCRR 202.8-b

I, Ryan W. Hickey, affirm under penalty of perjury pursuant to CPLR 2106, that the total number of words in the foregoing memorandum of law, inclusive of point headings and footnotes and exclusive of pages containing the caption, table of contents, table of authorities, and signature block, is 4317. The foregoing memorandum of law complies with the word count limit set forth in 22 NYCRR 202.8-b. In determining the number of words in the foregoing memorandum of law, I relied upon the word count of the word-processing system used to prepare the document.

s/Ryan W. Hickey

Ryan W. Hickey